

may certify
with respect to
the state of
assets.

debts or legacies, then the Master shall be at liberty to make such certificate as he thinks fit with respect to the state of the assets, and every person interested shall thereupon be at liberty to apply to the Court as he shall be advised.

The following Orders 160 and 161 are only in force so far as it does not contravene the above 85th New Order. The discharge and charge will be still in use ; but the schedules to answers will seldom be available, in consequence of the defendant not being compellable to make full discovery in the answer.

January 1845.
Charge and
discharge.

That the party, wishing to proceed with the reference, shall bring in his charge or at once file interrogatories for the examination of the accounting party, and thereupon bring in discharge ; and the schedules to the answer shall be used to substantiate the charge in the same way that is now the practice with respect to the accounts brought into the Master's office in the shape of debtor and creditor, and the discharge shall be brought in, and shall be dealt with in the same manner as is now done in respect of the debtor and creditor's account brought into the Master's office.

January 1845.
Schedule of
accounts.

That, upon a reference to the Master to take accounts between parties in all cases where there have been schedules of the accounts by the accounting party annexed to the answer, there shall be no warrants taken out to bring in any accounts except such accounts as are subsequent to the time of the schedules annexed to the answer.

April 1843.
Accounts to be
taken without
specific direc-
tions.

That, in the taking of accounts in the Master's office, it shall be within the cognizance of the Master to take the same according to the laws and practice of the Court of Chancery without any specific direction in the decree or order referring such accounts to the Master, and therein to take the same with rents, or otherwise to take account of rents and profits received, or that but for wilful neglect or default might have been received to set occupation rent to take into account necessary repairs and lasting improvements and expenses properly incurred otherwise, or claimed to be so, and generally in the taking of accounts to inquire and adjudge as to all matters relating thereto as fully as if the same had been specifically referred, subject nevertheless to the revision of the Court upon exceptions to the Master's report upon the matters aforesaid.

Provided nevertheless that no claim for improvements shall be entertained in the Master's office, unless the party making such claim shall before the pleadings have made

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